

5.

CASE #	CASE NAME	HEARING NAME
CVRI2502094	LEON VS AMERICA 2000 PRIVATE SECURITY, INC.	MOTION FOR ORDER TO DEEM MATTERS ADMITTED PURSUANT TO C.C.P. § 2033.280; REQUEST FOR SANCTIONS

Tentative Ruling: GRANTED. NO OPPOSITION HAS BEEN FILED.

6.

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CVRI2502094	LEON VS AMERICA 2000 PRIVATE SECURITY, INC.	MOTION FOR ORDER TO DEEM MATTERS ADMITTED PURSUANT TO C.C.P. § 2033.280; REQUEST FOR SANCTIONS

Tentative Ruling: GRANTED. NO OPPOSITION HAS BEEN FILED.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2502786	BRANDON VS CALIFORNIA DEPARTMENT OF SOCIAL SERVICES	DEMURRER ON PETITION FOR WRIT OF MANDATE

Tentative Ruling: Off-Calendar 6/26/26

8.

CASE #	CASE NAME	HEARING NAME
CVRI2507245	HUFFMAN VS FCA US LLC	MOTION TO COMPEL JAMES HUFFMAN'S INITIAL DEPOSITION AND REQUEST FOR MONETARY SANCTIONS PURSUANT TO CCP 871.26 SUBDS. (C) AND (J)

Tentative Ruling: DENIED

PROOF OF SERVICE: Proper

This is a lemon law case. Plaintiff, James Huffman, alleges that on 5/27/24 he entered into a warranty contract with Defendant, FCA US, LLC (FCA) regarding a 2023 Chrysler Pacifica vehicle. Defects and nonconformities to warranty manifested within the express warranty period as to the engine, transmission, and electrical systems

among other systems that impair the use, value and/or safety of the vehicle. Plaintiff presented the vehicle for service or repair to FCA's authorized representative but, they were unable to conform the vehicle to warranty after a reasonable number of repair attempts. Plaintiff filed his Complaint on 6/25/25 alleging six causes of action for violations of the Song Beverly Consumer Warranty Act (SBA): 1) violation of Civil Code (CC) § 1793.2(d); 2) violation of CC § 1793.2(b); 3) violation of CC § 1793.2(a)(3); 4) breach of the implied warranty of merchantability; 5) negligent repair (against Defendant, Lake Elsinore Chrysler Dodge Jeep Ram); and, 6) fraudulent inducement concealment.

Defendant, FCA, brings this ***motion for an order compelling Plaintiff, James Huffman, to appear for his deposition and for monetary sanctions of \$1,500 pursuant to CCP § 871.26(j)(2) for Plaintiff's failure to comply with CCP § 871.30(a)***. FCA asserts that it has met and conferred for months but, Plaintiff has not been presented for deposition; and, that Plaintiff agreed to attend on 3/27/26 but failed to attend.

Plaintiff opposes the motion arguing that he does not dispute he is required to attend his initial deposition under CCP § 871.26(c) and has always intended to comply; that dates of availability were provided on 6/17/26 so, the deposition can proceed without court order because this motion is moot; that Plaintiff's counsel had good cause (CCP § 781.26(j)) not to proceed on 3/27/26 due to scheduling difficulties that arose from legitimate calendaring conflicts, not willful refusal by Plaintiff; and, that FCA has not suffered any prejudice warranting sanctions.

The Reply asserts that this motion should be granted because of Plaintiff's non-appearance at the 3/27/26 deposition; that Plaintiff failed to provide updated availability; that FCA has met and conferred in good faith since January of 2026; and, that sanctions are mandated by statute and warranted for Plaintiff's failure to comply with their statutory obligations, delaying proceedings, and wasting judicial resources.

CCP § 871.26 provides for early disclosure of specified information. It applies to civil actions seeking restitution or replacement of a motor vehicle pursuant to CCP § 871.20, which actions were filed on or after January 1, 2025. (CCP § 871.26(a), (l).) The statute requires each party to make certain initial disclosures and produce certain documents within 60 days after the defendant files its answer or responsive pleading. (CCP § 871.26(b).) Additionally, within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours of the plaintiff and defendant's person most qualified. (CCP § 871.26(c)(1) and (2).) Further, within 90 days after the filing of the answer or other responsive pleading, all parties shall schedule a mediation. (CCP § 871.26(d).) And, except as provided in subsections (b) and (c), all other discovery is stayed until mediation has concluded. (CCP § 871.26(d).) "If the case is not resolved at the conclusion of mediation, standard discovery procedures ... shall apply...." (CCP § 871.26(e).)

If a plaintiff fails to comply with the provisions of the statute relating to depositions, the court shall impose a \$1,500 sanction against the plaintiff's attorney

unless the noncomplying party shows good cause. (CCP § 871.26(j)(2).) (emphasis added.) For a plaintiff's repeated noncompliance, the court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsive for costs awarded to the manufacturer. (CCP § 871.26(j)(3).)

Here, Defendant, FCA, asserts it is moving to compel Plaintiff to appear for an oral deposition pursuant to CCP § 871.26. However, the statute does not authorize a motion to compel a deposition. (see CCP § 2025.450.) Instead, as indicated above, the statute provides for an award of sanctions, unless good cause is shown, for a failure to timely comply with the statute. In this case, Plaintiff is required to attend a two-hour deposition *prior* to mediation and *prior* to invoking standard discovery procedures. (CCP § 871.26(c), (e), and (j)(2).) Thus, the question in this motion is whether Plaintiff demonstrated good cause for not *timely* attending his deposition.

Plaintiff's deposition was scheduled for the mutually agreed to date of 3/27/26 but, at the last minute he became unavailable; he failed to provide alternative dates of availability. (Dec. Richards ¶¶ 5-7, Ex. "D" – "F".) On 3/11/26, FCA notified Plaintiff's counsel that they intended to take a non-appearance. (*Id.* ¶¶ 8, Ex. "G".) On 3/23/26, Plaintiff sent objections; he did not provide any alternative dates of availability. (*Id.* ¶ 9, Ex. "H".) On 3/27/26, FCA took Plaintiff's non-appearance. (*Id.* ¶ 11, Ex. "J".) FCA sent meet and confer letters trying to obtain alternative dates of availability, but none were offered before this motion was filed. (*Id.* ¶¶ 12-14, Exs. "K" – "L".) FCA asserts it has opted into the new statutory procedures set forth in CCP § 871.30(a). (*Id.* ¶ 15, Ex. "M".)

In response, Plaintiff's counsel, Desiree T. Washington, declares that Plaintiff has not refused to appear, and has always intended to comply with CCP § 871.26. (Dec. Washington ¶ 1.) Ms. Washington declares that in March of 2026, her firm experienced significant scheduling conflicts affecting multiple cases/depositions that were not unique to Plaintiff's case nor were they the result of any intent to obstruct or delay FCA's discovery efforts. (*Id.* ¶ 3.) Plaintiff's counsel notified defense counsel as soon as possible on 3/11/26, and served objections on 3/23/26 based on the same scheduling conflicts. (*Id.* ¶¶ 4-5.) She acknowledges the delay in being responsive to FCA's meet and confer efforts referencing the firm's internal workload and staffing constraints. (*Id.* ¶ 6.) Ms. Washington declares that on 6/17/26, she sent Plaintiff's updated availability for his initial deposition. (*Id.* ¶ 7, Ex. "1".) Those dates include: 7/8/26 – 7/10/26 and 9/3/26 – 9/4/26. (*Id.* Ex. "1".) She asserts that Plaintiff acted in good faith. (*Id.* ¶ 11.)

CCP § 871.26 does not define what is meant by "good cause". However, the final Assembly Judiciary Committee Report on AB 1755, the enacting legislation for § 871.26, explains that the purpose of the discovery sanctions provision is to ensure "that attorneys faithfully adhere to these new discovery rules," and "that the information most relevant to a lemon law case is disclosed early in the litigation process and without the need to argue costly discovery disputes before the court." (Assem. Com. on Judiciary, Analysis of Assem. Bill No. 1755 (2023-2024 Reg. Sess.) as amended Aug. 30, 2024.)

Here, there is no dispute that Plaintiff failed to attend his deposition set for a date mutually agreed to by the parties. Importantly, Plaintiff's counsel acknowledges that it is their scheduling conflicts that caused the non-appearance. It was not Plaintiff's fault.

Plaintiff's counsel provided a reasonable explanation at a reasonable period of time prior to the 3/27/26 deposition. Ms. Washington stated in her declaration that her firm has taken steps to ensure more timely communication going forward and asserts that sanctions are not warranted as Plaintiff acted in good faith, has demonstrated his willingness to be deposed, and has now provided alternative available dates for the deposition to proceed. (Dec. Washington ¶¶ 10-11.)

Notably, the statute provides a built-in mechanism should Plaintiff "repeatedly" fail to attend his deposition – "a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer." (CCP § 871.26(j)(3.)) Based on Plaintiff's showing of good cause, the motion for sanctions is denied.

9.

CASE #	CASE NAME	HEARING NAME
CVRI2601060	FLANAGAN VS AMAZON.COM SERVICES LLC	DEMURRER ON COMPLAINT

Tentative Ruling: Off-Calendar 6/30/26